



NON-DISCLOSURE AGREEMENT

This Agreement is made and dated this ____ day of _____, 20__, between GoAccess LLC and _____ (hereinafter "the parties").

WHEREAS, the parties have developed certain information relating to the sale of security products.

WHEREAS, the parties for their mutual interests desire to disclose to the other from time to time certain proprietary information for the purpose of determining a possible business relationship;

NOW THEREFORE, the parties hereby agree as follows:

1. This Agreement is for the purpose of protecting proprietary information only, and shall not be construed as a teaming, joint venture, partnership or other business relationship.
2. Neither party has an obligation hereunder to supply proprietary information.
3. All information disclosed by either party to the other in the course of the dealings between the parties shall be presumed proprietary, notwithstanding the lack of designation of such information as such.
4. The receiving party's use of delivered proprietary information shall be limited to evaluation of such proprietary information to determine whether the receiving party wishes to either (i) license the proprietary information from the receiving party or (ii) enter into a joint investigation, joint development or similar business relationship with the party delivering the proprietary information, to develop products and/or services incorporating the proprietary information or reasonably based thereon. The receiving party shall not, without written consent, use or disclose the proprietary information in any way other than for the purposes defined herein.
5. For a period of five (5) years from the first date of receipt of the disclosing party's proprietary information which has been or will be exchanged relative to this Agreement, the receiving party shall preserve in confidence such proprietary information, excepting disclosure only to those of its employees who have a need to know, and who have been advised to maintain confidentiality pursuant to this Agreement. Upon discovery by the receiving party of any unauthorized use or disclosure, said party shall notify the disclosing party and shall prevent further unauthorized use or disclosure.
6. The obligations with respect to disclosing and using such proprietary information, as set forth in this Agreement, are not applicable to any information or data:
 - (i) if the same is, at the time of receipt, in the public domain or subsequently comes into the public domain thereafter through no act or omission of the receiving party in breach of this Agreement, or
 - (ii) is known to the receiving party prior to disclosure by the disclosing party, but the burden of proof to show such prior knowledge shall be on the receiving party, or
 - (iii) is lawfully disclosed to the receiving party by a third party not under any restrictions on disclosure and under conditions permitting such disclosure, but the burden of proof to show such disclosure shall be on the receiving party.
7. This Agreement shall not be construed as granting a receiving party any interest in patents or patent applications directed to the proprietary information furnished by the disclosing party.
8. Upon termination of this Agreement, each party shall, within a reasonable time, (i) return all proprietary information received from the other party, and copies thereof, and (ii) destroy any and all analysis, compilations, equipment, charts, or other documents or things which were prepared based upon or which incorporate the proprietary information, with such destruction being certified by an officer of the party.
9. In the event that the receiving party should be requested or required (by subpoena or similar process) to disclose any proprietary information supplied to it, it is agreed that the receiving party will provide the disclosing party with prompt

notice of such requests so that the disclosing party may seek an appropriate protective order or waive its rights hereunder. However, if, notwithstanding the disclosing party's objections, the receiving party is compelled by court order to disclose any proprietary information, then the receiving party shall not be liable hereunder provided the receiving party provides notice of such disclosure to the disclosing party within a reasonable time after such disclosure.

10. This Agreement represents the entire understanding between the parties and supersedes all prior agreements. This Agreement may not be modified without a signed writing.

11. This Agreement shall be governed and construed in accordance with the laws of the State of Delaware. The parties hereby agree to submit to jurisdiction in the state and/or federal courts of Delaware.

_____ (Company Name)

By: _____ (Authorized Signature)

Name: _____ (Print or type)

Title: _____

Date: _____